



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :
- against - : FINAL
Police Officer Kenneth Hansen : ORDER
Tax Registry No. 934883 : OF
Quartermaster Section : DISMISSAL
-----X

Police Officer Kenneth Hansen, Tax Registry No. 934883, having been served with written notice, has been tried on written Charges and Specifications numbered 2016-16254 and 2018-19141, as set forth on form P.D. 468-121, dated November 1, 2016, and June 13, 2018 (amended February 18, 2021) respectively, and after a review of the entire record, Respondent is found Guilty.

Now, therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Kenneth Hansen from the Police Service of the City of New York.

DERMOT F. SHEA
POLICE COMMISSIONER

EFFECTIVE: 7/9/2021

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>



POLICE DEPARTMENT

June 1, 2021

-----X

In the Matter of the Charges and Specifications	:	Case Nos.
- against -	:	2016-16254
Police Officer Kenneth Hansen	:	2018-19141
Tax Registry No. 934883	:	
Quartermaster Section	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Kathryn Falasca, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Maryam Hadden, Esq.
Parlatore Law Group
One World Trade Center, Suite 8500
New York, NY 10008

To:

HONORABLE DERMOT F. SHEA
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2016-16254

1. Said Police Officer Kenneth Hansen, on or about August 16, 2015, while off-duty and in the county of Suffolk, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Said Police Officer wrongfully engaged in a verbal and physical altercation with an individual known to the Department (*redacted*).

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

2. Said Police Officer Kenneth Hansen, on or about August 16, 2015, while off-duty and in the county of Suffolk, failed to notify the Department of his arrest, to wit: Said Police Officer failed to notify Operations or his Commanding Officer of a domestic incident in which he was involved and ultimately issued a criminal summons and an order of protection.¹

P.G. 206-11, Page 2
Paragraphs (16) and (17)MEMBER OF THE SERVICE ARRESTED
(UNIFORM OR CIVILIAN)Disciplinary Case No. 2018-19141

1. Said Police Officer Kenneth Hansen, on or about May 15, 2018, while off-duty and within the confines of Suffolk County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Said Police Officer Hansen wrongfully engaged in a verbal and physical altercation with an individual known to the Department. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

2. Said Police Officer Kenneth Hansen, on or about and between May 15, 2018, and June 4, 2018, while off-duty and within the confines of Suffolk County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Said Police Officer Hansen failed to notify the Department of an off-duty domestic incident in which he was involved, resulting in his arrest.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

¹ After reviewing the comments submitted by counsel following the issuance of the draft report and recommendation, the Tribunal notes, for clarification, that the record established that Respondent was neither arrested nor issued a criminal summons in connection with the August 16, 2015, incident, as alleged in this Specification. He was involved in an off-duty incident that requires notifications under Patrol Guide procedure 212-32 and was, as correctly noted in the Specification, served with a Family Court Order of Protection, which in and of itself would trigger a notification requirement. It is under that framework, rather than P.G. 206-11, that this specification will be analyzed.

P.G. 212-32

OFF-DUTY INCIDENTS INVOLVING
UNIFORMED MEMBERS OF SERVICE

3. Said Police Officer Kenneth Hansen, on or about June 4, 2018, while off-duty and within the confines of Suffolk County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Said Police Officer Hansen damaged property belonging to an individual known to the Department. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me remotely on April 14, 15 and 16, 2021. Respondent, through his counsel, entered pleas of Not Guilty to the subject charges. The Department called Sergeant Mikolaj Lankamer, Sergeant Yoon Lee, Sergeant Tara O'Leary, and Sergeant Natalie Barnes as its witnesses. The hearsay statements of [REDACTED]², the complainant, were also entered into evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find Respondent Guilty of the charged misconduct and recommend that he be DISMISSED from the New York City Police Department.

ANALYSIS

The following is a summary of the facts which are not in dispute:

Respondent and [REDACTED] who had known each other since 2011, began cohabitating in June 2015; they married on July 4, 2015. The couple was divorced on May 14, 2019. During their marriage, they occupied two marital homes³. [REDACTED] and Respondent ceased cohabitating on June

² "[REDACTED]" is a pseudonym for Respondent's former wife, whose identity is known to the Tribunal.

³ The homes will be referred to as "Home #1" and "Home #2"; their addresses are known to the Tribunal.

12, 2018. In addition to being a Uniformed Member of Service, Respondent was affiliated with the New York Air National Guard. During several of the periods at issue in this case, Respondent was on military leave (T. 295, 298-299, 340).

The misconduct allegations in dispute concern three incidents of domestic violence, all of which occurred outside of New York City: on August 16, 2015, May 15, 2018, and June 4, 2018. On each occasion, [REDACTED] called 911 for police services and a Domestic Incident Report was prepared.

Respondent has disputed these allegations, asserting that: (1) he did not commit any of the physical acts [REDACTED] accused him of committing; and (2) that at the time of the alleged acts of domestic violence, he was on extended military leave and under no obligation to inform this Department under the procedures dealing with off-duty incidents. Respondent admits, and therefore it is not in dispute, that he did not initiate any communication with this Department regarding any of the incidents mentioned above. However, Duty Captains contacted him on three occasions: Captain Kevin Brown on August 18, 2015, Captain Anat Naor on May 16, 2018, and Captain Christian Goulada on June 4, 2018. Respondent further asserts that on the day he was released from police custody in June 2018, he notified the Operations Division of this Department that he had been arrested (T. 291-292, 352-353).

The following is a summary of the relevant trial evidence.

August 16, 2015 Incident

On the evening of August 16, 2015, Respondent and [REDACTED] had a dispute, the nature of which is at issue. Ariel called 911, causing a police response at Home #1 (Dept. Exs. 4, 4A); Respondent was not present when they arrived.

In the 911 call, [REDACTED] stated, "I need to make a report against my husband; he punched me in the face" (Dept. Ex. 4, p. 2 ln. 2-3). When the operator asked [REDACTED] where her husband was,

she replied, "He's probably drove home to his parents' house. He's a cop, so he, he's drunk, and he's driving" (*Id.* at 2 ln. 20-21). She added, "He took my house keys and my car keys, and they're probably gonna shut my phone of"" (*Id.* at 3 ln. 1-2). [REDACTED] told the operator that she "just got married July 4th" and "He has all guns. I mean I don't want him arrested. I just wanna make sure that he doesn't come here and hurt me . . ." (*Id.* at 3, ln. 20-21; 4 ln. 3-4).

Police officers responded to [REDACTED]'s residence; she was interviewed and a Domestic Incident Report was prepared (Dept. Ex. 5). In the report, the interviewing officer noted that Ariel (P1) "states she got into a verbal dispute with P2 because he was angry that she spent money on pillows. P1 states that during the verbal dispute, P2 punched her in the face. P1 states that she does not wish to press charges on P1 but wishes to have the incident documented . . . P2 NYPD 111 Pct" (*Id.*). In the supporting deposition [REDACTED] attached to the report, she asserted, "I called 911 today because my husband Kenneth Hansen [DOB] started arguing with me because I spent money on pillows. At some point during the argument, Kenneth punched me in the face and then left the house with my keys. I do not want to press charges on Kenneth but would like this incident documented" (*Id.*).

On August 18, 2015, Ariel filed a Family Offense Petition in Family Court, in which she sought an Order of Protection (Dept. Ex. 6). In her petition, [REDACTED] stated that she was requesting the Order because "I am in fear of him coming back and hurting or killing me and my dog" (*Id.*). On August 18, 2015, the Family Court issued a Temporary Order of Protection in favor of [REDACTED] against Respondent; the Order was served on Respondent at 1930 hours that same day (Dept. Exs. 7, 7A). A summons was issued by the Family Court on the same date and served upon Respondent; the summons directed him to appear for a hearing on August 21, 2015 (Resp. Ex. A).

On August 18, 2015, Sergeant Mikolaj Lankamer conducted a telephonic, recorded interview with Ariel (Dept. Exs. 1, 1A). In this interview, Ariel reiterated the essential elements of her accusation against Respondent (*i.e.*, he punched her in the face during an argument over throw pillows) and added other pertinent details. She stated when Respondent voiced his objection to the amount of money she spent, [REDACTED] replied that she only bought them to see whether they matched their couch and intended to return them. Respondent then disparaged her thought process, using an obscenity, as well as a racial slur (*Id.* at 4). Respondent continued berating [REDACTED] claiming that she was useless as a wife, in part because she was unable to bear children. Respondent then declared that he was leaving; [REDACTED] offered to return her rings to him, saying, "You have no chain here." Respondent attempted to take [REDACTED]'s pocketbook, which contained her mobile telephone⁴. [REDACTED] struggled with Respondent in an attempt to retain possession of her pocketbook. Respondent removed [REDACTED]'s prescription anti-anxiety medication from her bag, emptied the pills into a sink, and washed them down the drain. Respondent continued shouting at her, saying, "Where's my phone? Give me my phone." As they continued to struggle over possession of the pocketbook, Respondent punched [REDACTED] in her face (*Id.* at 7).

At that point, [REDACTED] hit Respondent back, and he began pulling her. She told him to get out, and he responded that she should get out. Respondent dragged her by the arms and pulled her out of their apartment. [REDACTED] stated that she had bruises under her arms, knees, shin, and buttocks. As she was struggling to stay inside the apartment, she shouted, "Get out because I'm going to call the cops on you, and you don't want to go there" (*Id.* at 8).

Respondent then grabbed [REDACTED] and pulled her back into the apartment, taking her to their bedroom, where he pushed her into a closet. As they both struggled, Respondent attempted to

⁴ [REDACTED] told Sergeant Lankamer that once they were married, Respondent made her shut off her service and go on his family plan, which included his parents.

place his hands around [REDACTED]'s neck. [REDACTED] stated that during this incident, Respondent had been drinking (*Id.* at 5, 8, 16-17).

When Respondent eventually left Home #1, [REDACTED] placed a call to 911, to which police responded. She told the responding officers that she did not want to press charges because of the potential impact upon Respondent's career. The responding police officers did not take any photographs of her injuries. [REDACTED] did, however, have her sister take pictures, which she turned over to Sergeant Lankamer (*Id.* at 12, 16-17; Dept. Exs. 3A-3J).

[REDACTED] called Respondent's mother that night and told her, "Your son punched me in the face." [REDACTED] asked her if she would have Respondent return her car keys and her house keys. At about 2230 hours that evening, Ariel went to lock her front door and lost consciousness; she claimed she woke up at approximately 0300 hours, lying flat on her back. When she attempted to make a telephone call, she discovered that the service had been disconnected (Dept. Ex. 1 at 17-20).

[REDACTED] eventually decided to seek treatment at an urgent care facility later that day. As she was leaving the apartment, Respondent's mother, Carlotta,⁵ knocked on her door. Carlotta returned [REDACTED]'s keys to her and then asked [REDACTED] to return her E-Z Pass transponder, which she and Respondent had borrowed the previous weekend. [REDACTED] returned the transponder and was about to leave when Carlotta returned and asked [REDACTED] to give back her mobile telephone. When [REDACTED] balked at the demand, Carlotta accused her of assaulting Respondent and declared that they ([REDACTED] and Respondent) were getting a divorce (*Id.* at 18-21).

When [REDACTED] was treated at the urgent care facility, she was advised to have a CAT scan of her face and brain, which did not reveal any significant results. Once she completed the CAT scan, [REDACTED] went to a police station to "file charges." [REDACTED] told Sergeant Lankamer she wanted

⁵ "Carlotta" is a pseudonym for Respondent's mother, whose name is known to the Tribunal.

to file charges “because he has all kinds of weapons. I mean ridiculous military weapons in a safe in his mother's home.⁶ Not in my home. You know, the – he never bought [sic] a, a firearm into my house except one. I know that NYPD has his gun because he's military active now, but he has all these crazy – he never threatened me with a gun.” █████ claimed Respondent made statements to her that caused her concern for his state of mind⁷ (*Id.* at 22-27).

█████ told Sergeant Lankamer that Respondent had also physically accosted her approximately one week earlier when she did not immediately terminate a telephone call she was on when he returned home. She confirmed two physical encounters with Respondent within the six weeks since they were married on July 4, 2015 (*Id.* at 11-12).

On August 18, 2015, Sergeant Lankamer had a telephonic, recorded interview with Sebastian.⁸ In this interview, Sebastian told Sergeant Lankamer that Home #1 was an extension of his home. When Lankamer questioned him about the August 16, 2015 incident, he stated that neither Sebastian nor his wife was home at the time, but when he saw █████ on August 17, 2015, he observed that she had a swollen left jaw and “black and blues” on her arms and legs (Dept. Ex. 2 at 4-5).

On June 28, 2016, Sergeant Yoon Lee conducted a telephonic, recorded interview with █████. In this interview, █████ told Sergeant Lee, “Everything's just been dropped, and there's really nothing to talk about at this point.” When Sergeant Lee asked whether he could ask her some questions about the 2015 incident, Ariel responded, “No, not really. No, I, I'd rather not talk about it . . . No, basically, there's nothing really to talk about. It's just, you know, just done and over with, and nothing happened like I said happens . . .” (T. 107; Dept. Ex. 8 at 2-3).

⁶ Respondent's mother's home is the address Respondent still claimed as his official residence, despite moving in with █████ in January 2015.

⁷ According to █████, Respondent often voiced his opinions on race and ethnicity in a manner she found disturbing.

⁸ “Sebastian” is a pseudonym for █████'s uncle, whose identity is known to the Tribunal.

█████ was interviewed by Sergeant Tara O'Leary on June 12, 2018, regarding two later off-duty incidents. In that interview, however, she provided additional facts regarding the disposition of the 2015 family court case. █████ acknowledged that there had been a prior incident of violence with Respondent (referring to the August 16, 2015 incident), but that she had given him a chance to see if they could salvage the relationship. █████ volunteered that she had gone to court, but Respondent contacted her and asked her to drop the charges because he would "get in trouble with work and the military" and possibly lose his security clearance. █████ stated that although she had signed a separation agreement, she and Respondent continued to cohabitate (Dept. Ex. 10 at 3-6).

Respondent testified that on August 16, 2015, he and █████ argued about her purchasing throw pillows (T. 279, 303). He took exception with her purchase, which was for approximately \$400, because for two years preceding their marriage, he had been paying her monthly rent of roughly \$1,200 and assisting with her car payment (T. 279-280, 305). Respondent denied that the disagreement went beyond a verbal one and denied any physical interaction with █████ (T. 280). He claimed that the argument ended when he left their residence and went to his parents' home (T. 280). Respondent asserted that █████ was in normal physical condition when he left her and that she did not have any cuts or bruises on her body (T. 281). Respondent denied observing any injuries on █████ body in the days after the incident (T. 302). He claimed that he was unaware when he left their residence that █████ had called or intended to call the police, but later learned that she had done so (T. 281). Respondent admitted on cross-examination that he had previously stated in his Department interview that █████ had sent him a text message that night informing him that she had called the police (T. 307). On re-direct examination, Respondent acknowledged the text message stated that █████ was going to call the police, but maintained that he was uncertain whether she had done so (T. 351).

The Assistant Department Advocate confronted Respondent with Department Exhibits 3A-3J, the photographs of Ariel, and the injuries she purportedly sustained on August 16, 2015; Respondent claimed that he did not recall being shown those photographs at his Department interview but conceded the accuracy of the transcript if it indicated that the investigators had shown him the pictures (T. 308-309). While he acknowledged that the photographs were of [REDACTED] he denied any knowledge of how she sustained the injuries depicted in them (*Id.*).

Respondent testified that on August 18, 2015, police served him with an Order of Protection and a Family Court summons (T. 281-282). He spoke with Captain Kevin Brown, who he acknowledged was the Duty Captain, later that day (*Id.* at 309-310.).

On January 12, 2016, the Order of Protection was vacated; by then, Respondent and [REDACTED] had reconciled and moved back in together (*Id.* at 310). He conceded that before [REDACTED] vacated the Order of Protection, they discussed the August 16, 2015 incident several times, in person, by telephone, and text message; he denied, however, asking her to dismiss the charges (T. 312-314). Respondent denied ever telling Ariel that he could get in trouble with the NYPD or the military (T. 315). He contended that their argument never escalated beyond a verbal disagreement; in claiming the discussion turned physical, Ariel lied to the local police, the 911 operator, and this Department (*Id.*).

May 15, 2018 Incident

On May 15, 2018, a second Domestic Incident Report was prepared by the local police department with Ariel filling out a supporting deposition (Dept. Ex. 11). In that report, the interviewing officer noted, "P1 reports verbal dispute with her husband at the above location regarding divorce paperwork. P1 states P2 punched her in her left arm. P1 has no visible marks and does not complain of pain. P1 does not request medical attention" (*Id.*). In the supporting deposition Ariel attached to the report, she asserted, "I [redacted][DOB] give this statement to

P.O. Hernandez #6680 while inside my residence at 'Home #2'. Today 5/15/2018, my husband Kenneth Hansen [DOB], who lives with me at 'Home #2,' got into an argument with me at our home. We were arguing over getting a divorce. During the argument, my husband Kenneth Hansen punched me in my left arm. I don't have any bruises, and I'm not in pain. I don't require medical attention. I just want my husband, Kenneth Hansen, out of the house. I don't want him arrested or to press charges at this time" (*Id.*). When police arrived, Respondent was told to leave the home.

In her June 12, 2018 recorded interview with Sergeant O'Leary, [REDACTED] reiterated the essential allegation in the Domestic Incident Report (*i.e.*, Respondent grabbed her arm during an argument over their impending divorce) and added other pertinent details. [REDACTED] stated that Respondent started a fight with her on May 15, 2018, and was becoming progressively more violent, verbally abusive, and "crazy." In this incident, Respondent approached [REDACTED] in her bedroom and grabbed her arm before ripping a cross from her neck. He then took a photograph of [REDACTED] deceased son and said, "Get this little asshole out of my house. I'm sick of looking at his stupid fricking face." According to [REDACTED] Respondent began throwing her belongings across the room. As [REDACTED] left the home, Respondent was pleading with her not to call the police. [REDACTED] then called Respondent's mother, who told her to come to her house (Dept Ex. 10 at 2-5).

[REDACTED] stated that after she left to go to Carlotta's home, she decided that she did not trust her and called the police, who responded to Home #2. The police told Respondent to leave, and he went to his mother's home. Respondent eventually returned to their residence and told [REDACTED] that he would leave her alone (*Id.* at 7-9).

[REDACTED] discussed the May 15, 2018 incident again in a recorded telephone conversation with Sergeant Barnes. In that interview, she reiterated the allegations she made in her interview with Sergeant O'Leary (*i.e.*, that Respondent had grabbed her arm; that he had torn a cross from

around her neck; took a picture of her deceased son and made degrading comments) and added other pertinent details. In her statement to Sergeant Barnes, [REDACTED] stated that Respondent temporarily left her bedroom but returned shortly after that. He then pushed her and punched her in her arm. [REDACTED] added to her original account of the incident by asserting that Respondent began spraying Windex in her face and her eyes. She was able to lock herself in her room to protect herself from Respondent, but he stood outside the locked door, saying, "[REDACTED], stop trying to stab me. Stop stabbing me. I'm bleeding." [REDACTED] then called 911. When the police responded, Respondent was present. [REDACTED] asserted that during this incident, Respondent was drunk (Dept Ex. 13 at 3-6, 11-13).

Respondent testified that he had an argument with [REDACTED] on this date at Home #2. He initially claimed that the fight was about [REDACTED] lying in bed and not taking showers; [REDACTED] became "irate," and the couple continued to argue with raised voices until Respondent left the residence and went to his parents' home (T. 287-288). On cross-examination, Respondent claimed he did not recall what the argument was about (T. 328). Respondent claimed that he notified his military chain of command of the altercation (*Id.* at 329).

Respondent testified that he spoke with Captain Anat Naor of this Department the following day. In that conversation, he claimed he discussed what transpired between himself and [REDACTED] during their argument (*Id.* at 288). However, on cross-examination, Respondent testified that a Captain Hall contacted him from either Queens North or Queens South. He conceded that he did not contact the Operations Division regarding this incident (*Id.* at 333).

June 4, 2018 Incident

On June 4, 2018, a third Domestic Incident Report was prepared by the local police department with [REDACTED] filling out a supporting deposition (Dept. Ex. 12). In that report, the interviewing officer noted, "P1 reports verbal dispute with her husband P2 regarding him trying

to look through her phone at their home at the above location. P1 states P2 then through [sic] her phone to the ground causing the glass screen to crack. P1 states P2 then departed the above location stating that he was going to fix the phone. P1 states she observed P2 drinking an unknown amount, and he shouldn't be driving" (*Id.*). In the supporting deposition [REDACTED] attached to the report, she asserted, "My husband Kenneth Hansen [DOB] who resides with me at 'Home #2' and I got into an argument because he was trying to look through my phone. I tried to get it back from him, and then he threw it to the ground. It's an iPhone 6, and I think just the screen is cracked. I'm not sure because after he broke it, he picked it up and left, saying he might fix it. I saw him drinking, so he probably shouldn't be driving. He left in a silver Nissan Sentra rental car. I do not want to press charges at this time" (*Id.*).

In her June 12, 2018, recorded interview with Sergeant O'Leary, [REDACTED] reiterated the essential allegations in the Domestic Incident Report (*i.e.*, that Respondent had grabbed her mobile telephone and thrown it to the ground, damaging it) and added other pertinent details. In that statement, she told Sergeant O'Leary that on June 4, 2018, she and Respondent had been discussing finding a lawyer so that they could move forward toward divorce. [REDACTED] went to her bedroom and was using her mobile telephone to try to find a divorce lawyer when Respondent entered the bedroom, and asked her, "Who are you talking to, your boyfriend?" Even though [REDACTED] denied having a boyfriend, Respondent took the phone from her hand and ran into the kitchen. [REDACTED] pursued him and demanded that he return her phone. When he refused to do so, she attempted to wrest it from his hand, but he threw it to the floor, damaging the screen. As Respondent threw the phone to the floor, he called [REDACTED] "an effing C⁹." [REDACTED] stated that during this incident, Respondent had been drinking (Dept. Ex. 10 at 9-11; Dept. Ex. 12).

⁹ The Tribunal takes judicial notice that the term is an obscenity generally used in a disparaging manner against women.

When the police responded, [REDACTED] made a complaint alleging Criminal Mischief. She then changed her mind and said that she did not want to press charges, deciding to apply for an Order of Protection instead. She changed her mind again on June 7, 2018, and decided to go forward with the Criminal Mischief complaint. Respondent was arrested and then released (*Id.* at 12-14).

[REDACTED] stated that upon Respondent's release, he was likely to go to Carlotta's house, where he had many weapons. [REDACTED] opined that by the time she had her conversation with Sergeant O'Leary, Respondent had moved the guns from Carlotta's home "because that's what he did last time"¹⁰ (*Id.* at 14-15).

[REDACTED] discussed this incident again with Sergeant Natalie Barnes on June 14, 2018 (Dept. Exs. 13, 13A). In a telephonic, recorded interview, [REDACTED] reiterated the allegations she made in her June 12, 2018 interview with Sergeant O'Leary (*i.e.*, that Respondent had grabbed her phone and damaged it) but added new pertinent details. In this statement, for the first time, [REDACTED] alleged that Respondent had spat in her face during the altercation. (Dept. Ex 13 at 23)

Respondent testified that he and [REDACTED] had another argument on this date, this time about pursuing a divorce. [REDACTED] had begun moving her belongings from the bedroom they shared on the upstairs level to the downstairs level; despite this, Respondent questioned whether she was making a sincere attempt to find another place to live (T. 289). He denied having any physical contact with [REDACTED] or damaging her phone (T. 289-290, 336). The verbal dispute escalated to the point that Respondent left Home #2 and went to his parents' home (T. 290). Once he arrived at his parents' house, he called 911 and a Domestic Incident Report was prepared (T. 290-291; Resp. Ex. B). In the report, Respondent stated that he and [REDACTED] had a verbal dispute at their home and that she was "off her medication." He said further that he left their home to avoid a

¹⁰ [REDACTED] stated that Respondent admitted moving weapons from his parent's home to the home of a third party.

further argument with her. While Respondent testified that he spoke with his military chain of command and notified them that he and [REDACTED] had a verbal altercation, he conceded that he did not inform anyone from this Department (T. 291, 337). Respondent also had a telephone conversation that day with Captain Christian Goulada of this Department¹¹ (T. 291).

On June 12, 2018, Respondent was arrested and charged with Criminal Mischief (T. 291). He claimed that he did not know the basis of that charge but that someone informed him the accusation was based upon [REDACTED]'s allegation that he had broken her telephone (T. 292). Respondent was arraigned and released; upon his release, he claimed that he contacted this Department's Operations Unit (*Id.*). Respondent asserted that he also contacted his military chain of command about his arrest (*Id.*). On August 12, 2018, he disposed of the Criminal Mischief charge with an Adjournment in Contemplation of Dismissal (T. 293).

Respondent testified that he married Ariel in July 2015 after being in a relationship with her for approximately four years. He was aware that she had a son who perished in a vehicular accident in 2012. As far as Respondent was aware, Ariel had been prescribed medication after her son's death and periodically suffered from emotional issues (T. 274-276).

Once Respondent and [REDACTED] were married, they cohabitated at Home #1 (T. 278). In actuality, this home was an apartment attached to [REDACTED]'s uncle's house (T. 279). Respondent purchased Home #2 in 2016 (T. 287, 298). They were divorced on May 14, 2019 (T. 295). He asserted that he pays no spousal support to [REDACTED] (T. 298).

Respondent testified that he was on extended military leave at the time of the two 2018 incidents with [REDACTED] and only returned to full-time duty with this Department in May 2020 (T. 293-294; Resp. Ex. D). He acknowledged receiving a pay differential from this Department and his medical benefits while he was on such leave (T. 321). Respondent testified that he believed

¹¹ Respondent offered no testimony regarding the contents of this conversation.

he had been furloughed from this Department during the periods he was on extended military leave and that the provisions of the Patrol Guide did not apply to him (T. 325). He claimed he was unfamiliar with Patrol Guide procedure 205-23 as it pertains to Members of Service on indefinite military leave (T. 320)¹².

Respondent denied having any personal contact with Ariel from June 12, 2018, until the Order of Protection issued on that date expired (T. 341). After the order expired, Respondent admitted speaking to [REDACTED] twice a month but denied ever discussing the allegations she made regarding the May 15, 2018, and June 4, 2018 incidents (T. 342). Respondent claimed that approximately one month before the instant trial, he had a conversation with [REDACTED] in which she offered to write a letter for him (*Id.*). He denied telling her that it would be helpful for his career if she wrote a letter but admitted that he provided his attorney's contact information to her (T. 343). Respondent denied having any discussions with Ariel between June 2018 and March 2021 about the statements she made to either the local police or this Department (*Id.*). He conceded, however, that he discussed the fact that he had pending administrative charges on three or four occasions (T. 344-345).

Respondent was confronted with the audio recordings in Department Exhibits 1, 4, 8, 10, and 13; he conceded that they all were recordings of Ariel's voice (T. 345-348). He further acknowledged that the voice on Department Exhibit 2 was that of [REDACTED]'s uncle, Sebastian (T. 348-349).

The findings in these cases will turn on credibility assessments of the witnesses who appeared before the Tribunal and the reliability of hearsay evidence offered by the Department in its case in chief. I have read [REDACTED]'s hearsay statements; I have also listened to the recordings of

¹² I took judicial notice of P.G. 205-23, the pertinent portion of which states: "*Members of the service assigned to the Military and Extended Leave Desk on a leave of absence must continue to abide by all Department rules and regulations.*" (italics in original)

her 911 call and subsequent interviews. Finally, I had the opportunity to observe Respondent's demeanor as he testified remotely.

In a misconduct case involving allegations of domestic violence, the finder of fact must carefully consider the individual motivations of the parties to provide truthful information. When placed in proper context, the behaviors of the parties before and after the incident in question may also reveal evidence relevant to a credibility assessment. Finally, the degree to which competing narratives are logical and corroborated by independent evidence must be part of the credibility findings.

Based upon the totality of the record, I find that [REDACTED] hearsay statements, contained in Department Exhibits 1, 1A, 4, 4A, 5, 6, 10, 11, 12, and 13, bear sufficient indicia of reliability upon which to base findings of fact. I make this finding mindful that she did not appear before the Tribunal and present herself for examination; nevertheless, her statements were logical and consistent with other credible evidence in the case. The above-described exhibits encompassed statements [REDACTED] made in police reports, court petitions, and interviews with Department investigators. As outlined in detail below, the timing of her initial outcries, the circumstances under which she made her statements, and the substance of those statements, taken together, strongly support a finding that her statements are credible.

I further find the testimonies of Sergeant Lankamer, Sergeant O'Leary, and Sergeant Barnes to be credible, forthright, and consistent with the performance of their professional duties. Each of these witnesses provided additional background information regarding the circumstances under which [REDACTED] made the hearsay statements contained in Department Exhibits 1, 10 and 13, lending them further indicia of reliability.

[REDACTED] filled out supporting depositions in three Domestic Incident Reports on August 16, 2015, May 15, 2018, and June 4, 2018, each of which clearly stated, "[f]alse statements made

herein are punishable as a Class A Misdemeanor, pursuant to section 210.45 of the Penal Law.”

█████ filed these reports close in time to the events they described, when she did not have a significant opportunity for reflection or an incentive to falsely accuse Respondent. On the contrary, the police reports were made in the context of Respondent's verbal abuse, the acts of physical violence █████ attributed to him, his chronic alcohol abuse, and her expressed belief that he had ready access to weapons; under these circumstances, she had a greater incentive to remain silent out of fear, rather than make three official police reports documenting his abuse. █████ explicitly set forth her fear for her personal safety, and that of her pet, in the Family Court petition she filed on August 18, 2015, in which she sought an order of protection against Respondent.

Because of the June 7, 2018 police report █████ filed, Respondent was arrested and charged with Criminal Mischief. Her statements were apparently sufficiently reliable for Respondent to have disposed of the charge in court with an adjournment in contemplation of dismissal.

I find that Respondent's testimony before the Tribunal was permeated with self-interest. While any Respondent is interested in the outcome of the proceeding by the potential adverse consequences of a guilty finding, the Respondent's self-serving testimony and the selectivity of the evidence he presented in his defense made clear his incentive to advance a false narrative. Although my observation of his trial demeanor was arguably limited by his testimony being received virtually, his evasiveness and disingenuousness were palpable.

I further find █████'s notarized statement, dated March 29, 2021 (Respondent's Exhibit C), which Respondent characterized as a recantation, lacks any indicia of reliability. It was prepared at the direction of Counsel for Respondent on the eve of trial and is questionable on its face. In that document, █████ attempts to recant her previous allegations that Respondent was

violent with her on August 16, 2015, May 15, 2018 and June 4, 2018. As set forth below in the analysis of Specification 1 of *Disciplinary Case No. 2016-16254*, [REDACTED] made five hearsay declarations regarding the August 16, 2015 allegation of domestic violence. A comparison of these five declarations to the declarations contained in [REDACTED]'s March 29, 2021 statement establishes the unreliability of Respondent's Exhibit C.

First, while hearsay is admissible in this forum, the hearsay statements contained in Respondent's Exhibit C are different from Ariel's other hearsay statements, which I have found to be reliable. I was able to consider the circumstances of the making of those statements because Sergeants Lankamer, O'Leary and Barnes all appeared before the Tribunal and testified extensively.

For example, I found Ariel's hearsay statements with respect to the August 16, 2015 incident were corroborated by injuries documented in photographs and a third-party witness who observed her with injuries the day after the incident. In Respondent's Exhibit C, however, Ariel asserted that in regard to the same incident, "nothing had happened beyond yelling" (Resp. Ex. C, p. 1, ¶ 1). This assertion is completely inconsistent with: (1) Ariel's 911 call; (2) the statement she made in her August 16, 2015 Domestic Incident Report; (3) the photographs of her injuries; and (4) her uncle's observation of her injuries the day after the incident.

Second, there is no testimony in the record regarding the creation of the statement in Respondent's Exhibit C beyond Counsel for Respondent's proffer that she indeed drafted it and submitted it to [REDACTED] for her signature¹³. It is noteworthy that the tenor of this statement is similar to the statement [REDACTED] gave Sergeant Lee on June 28, 2016 (Dept. Ex. 8). When Sergeant

¹³ I found that Counsel for Respondent's proffer, as an officer of the court, was a sufficient basis for me to authenticate the document and admit it into evidence. My comments on the lack of evidence regarding the circumstances leading up to the creation of the document should not be construed as an attack on counsel's ethics or the quality of the representation she rendered to Respondent.

Lee attempted to interview [REDACTED] about the August 16, 2015 incident, she made similar assertions that "Everything's just been dropped and there's nothing to talk about" and "nothing happened." Two years later, however, [REDACTED] refuted those purportedly exculpatory assertions in her June 12, 2018 statement to Sergeant O'Leary (Dept. Ex. 10). [REDACTED] told Sergeant O'Leary that although she had she gone to Family Court over the 2015 incident, Respondent contacted her and asked her to drop the charges because he would "get in trouble with work and the military" and possibly lose his security clearance.

In Respondent's Exhibit C, Ariel asserted that although "nothing had happened beyond yelling," she contacted the police the day after the incident and decided to press charges, because she was "still angry." Despite Respondent's denials that he sought to elicit such an exculpatory statement from [REDACTED] or that he discussed her previous statements to investigators with her, he did admit in his testimony that they discussed the fact that there were charges pending before this Tribunal three to four times. The totality of the circumstances present in this case strongly suggests that [REDACTED] March 29, 2021 statement came about as a result of another plea from Respondent to help him avoid the consequences of his actions. In evaluating who has the greater incentive to advance a false narrative in this proceeding, between [REDACTED] and Respondent, this Tribunal finds that it is Respondent.

Third, the Tribunal must take into account [REDACTED]'s failure to present herself in court for an examination of the assertions she made in Respondent's Exhibit C, since they are in direct opposition to the assertions she made in her other hearsay statements. While she is not obligated to appear, her failure to do so under these circumstances denied the Tribunal the opportunity to more carefully scrutinize the totality of her evidence in a more holistic manner.

Finally, [REDACTED] assertion in Respondent's Exhibit C that she did not realize that speaking to Department investigators, which she did on four separate occasions, qualified as "a formal statement" defies common sense and is unworthy of belief.

These two packets of hearsay statements are logically irreconcilable with each other: five made close in time to the events they describe and the other on the eve of trial; five corroborated by independent evidence and the other in direct contradiction to that same independent evidence; five which comport with logic and human experience and the other which requires suspension of disbelief. Logic and common sense dictate that [REDACTED] five corroborated statements regarding the August 16, 2015 incident are more trustworthy than her attempted eleventh-hour recantation of those same statements. Based upon the foregoing analysis, I find the hearsay statements made in Respondent's Exhibit C to be unreliable, especially with respect to the specific comments regarding the August 16, 2015, May 15, 2018 and June 4, 2018 incidents.

Disciplinary Case No. 2016-16254

Specification 1: Engaging in a Domestic Incident on August 16, 2015

I find the Department has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent engaged in a verbal and physical altercation on August 16, 2015, with his then-wife, Ariel. As set forth above, I find Ariel's descriptions of this event to be consistent and logical. Within 72 hours after the incident, Ariel asserted on five separate occasions that Respondent had punched her in the face: (1) in her August 16, 2015 call to the 911 operator; (2) on August 16, 2015, to the responding police officer; (3) in her August 16, 2015 supporting deposition; (4) in an August 16, 2015 conversation with Respondent's mother; and (5) in her August 18, 2015 interview with Sergeant Lankamer. Even though Ariel discussed this incident in two subsequent interviews with Sergeants O'Leary and Barnes, her description did not vary in any significant respect.

I find the photographs in Department Exhibits 3A-3J, as well as the statement of her uncle Sebastian, to be corroborative of her assertion that Respondent had punched her and that she had other injuries as a result of their altercation. I find additional corroboration of [REDACTED] complaint that Respondent punched her in the face in her assertion that she lost consciousness at Home #1 late in the evening of August 16, 2015, before she sought medical attention the next day. I further find that [REDACTED]'s assertion that Respondent had attempted to choke her is another credible allegation of assault, which occurred during the same dispute.

Respondent's denial is unpersuasive in the face of the corroboration of [REDACTED] statements and the photographs documenting her injuries. As discussed above in my credibility findings, neither [REDACTED] June 28, 2016 statement to Sergeant Lee, appearing to disavow her descriptions of this incident nor her March 29, 2021 statement, offered by Respondent as a purported recantation of all her previous statements, possess probative value.

I further find that Respondent's involvement in such an incident was to the prejudice of good order, discipline, and efficiency of this Department.

Based upon the foregoing, I find Respondent Guilty of Specification 1.

Specification 2: Failure to Make a Notification

I find the Department has met its burden of proof by a preponderance of the credible, relevant evidence that on or about August 16, 2015, Respondent failed to notify Operations or his Commanding Officer that he had been involved in a domestic incident.

Patrol Guide procedure 212-32 requires any off-duty uniformed member of the service who is either a participant in, or a witness to, an unusual police occurrence to: (1) remain at the scene when feasible and consistent with personal safety; and (2) request the response of a patrol supervisor in the precinct of occurrence (P.G. 212-32, ¶ 1, 2). Family disputes and acts of domestic violence of which the member is either a participant in, or a witness to, are considered

unusual police occurrences (P.G. 212-32, Note). If the incident occurs outside of the City, the member must notify the Operations Unit (*Id.*).

Based upon my findings in Specification 1, I find that the incident, which occurred on August 16, 2015, between Respondent and Ariel, was an incident of domestic violence occurring outside of New York City; accordingly, Respondent was bound to report the incident to the Operations Unit. Respondent was served with a Family Court summons and an Order of Protection on August 18, 2015; he was directed to appear for a hearing on August 21, 2015. The service of an Order of Protection upon Respondent in and of itself triggers a notification requirement under the Patrol Guide (*see* P.G. 206-19).

As set forth above, Respondent conceded that he did not make a notification to any member of his chain of command regarding this incident. Respondent argued that he was not obligated to do so because of his military status at the time of the incident, but I have rejected that defense because Patrol Guide procedure 205-23 explicitly states that Members of Service who are on a military leave of absence are still required to abide by all Department rules and regulations. While Respondent acknowledged that he had a telephonic conversation with Captain Brown regarding this incident, the evidence in the record does not support a finding that the discussion, which Respondent did not initiate, qualified as a notification under the Patrol Guide.

Based upon the foregoing, I find Respondent Guilty of Specification 2.

*Disciplinary Case No. 2018-19141¹⁴**Specification 1: Engaging in a Domestic Incident*

I find the Department has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent engaged in a verbal and physical altercation with his then-wife, [REDACTED] on May 15, 2018.

I find that [REDACTED] statements regarding the May 15, 2018 incident were logical and worthy of belief. While her initial statement in the Domestic Incident Report only accused Respondent of a single physical act of punching her arm, in her June 12, 2018 statement to Sergeant O'Leary, she stated that Respondent grabbed her arm. In her June 14, 2018 statement to Sergeant Barnes, she reasserted that Respondent had punched her arm. Both her June 12, 2018, and, June 14, 2018 statements respectively, were consistent in that she also accused him of tearing a necklace from around her neck. In her June 14, 2018 statement, she added another allegation that Respondent sprayed her face with Windex.

When considered together, I find [REDACTED] statements credible and sufficiently reliable to support a finding that the acts she complained of actually occurred and that Respondent committed them. I do not find the differences in the statements, specifically with respect to

¹⁴ In the interest of clarification, after reviewing counsel's submissions on the draft report and recommendation, the Tribunal notes that Specification 2 of *Disciplinary Case No. 2018-19141* deals with the notification requirements surrounding two "off-duty domestic incidents" that occurred on two different dates, less than one month apart, on May 15 and June 4, 2018. The misconduct alleged in Specifications 1 and 3 deal individually with the two incidents. The May 15, 2018 incident is charged under Specification 1 as "a verbal and physical altercation." The June 4, 2018 incident is characterized in Specification 3 as a property damage incident; however, the tribunal finds that a prima facie case was also established for a verbal and physical altercation. Respondent did not deny a verbal argument or the fact that he himself called the police to file a Domestic Incident Report (T. 289-290.) Ariel alleged that during this incident, Respondent wrested her phone from her hand; twisted her arm when she tried to take it back; spat in her face and threw the phone on the ground, causing the screen to crack, all while calling her derogatory names (Dept. Ex. 10 at 10; Dept. Ex. 13 at 22-23). Accordingly, the Tribunal would characterize this incident as a "physical act of domestic violence" under the NYPD Disciplinary System Penalty Guidelines, in line with the two prior incidents, as opposed to characterizing it solely as property destruction, which the Guidelines consider a "non-physical act of domestic violence" (See Disciplinary Guidelines at pp.33-34).

Respondent either punching or grabbing her arm, to have a material impact upon the reliability of those same statements.

As committed by Respondent on May 15, 2018, I further find that such acts were to the prejudice of good order, discipline, and efficiency of this Department.

Accordingly, I find Respondent Guilty of Specification 1.

Specification 2: Failure to Make a Notification

I find the Department has met its burden of proof by a preponderance of the credible, relevant evidence that on or about May 15, 2018, and June 4, 2018, Respondent failed to notify the Operations Unit or his Commanding Officer that he had been involved in a domestic incident.

As discussed above in my findings relative to Specification 2 of *Disciplinary Case No. 2016-16254*, Patrol Guide procedure 212-32 imposes specific notification requirements upon uniformed members of the service who are either involved in, or a witness to, any off-duty family dispute or an incident of domestic violence. I find that the incidents, which occurred on May 15, 2018, and June 4, 2018, each qualify as incidents of domestic violence occurring outside the City of New York, triggering Respondent's duty to make a notification to the Operations Unit.

As set forth above, Respondent conceded that he did not make any notifications to this Department regarding these two events because he believed that he had no obligation to do so based upon his military status. I reject this defense for the same reasons I did so concerning Specification 2 of *Disciplinary Case No. 2016-16254*.

While Respondent acknowledged that he spoke with Captains Naor and Goulada about these incidents, he did not initiate those telephone calls. I find, therefore, they do not qualify as notifications within the requirements of Patrol Guide procedure 212-32.

Based upon the foregoing, I find Respondent Guilty of Specification 2.

Specification 3: Damage to Property

I find the Department has met its burden of proof by a preponderance of the credible, relevant evidence that Respondent damaged [REDACTED]'s mobile phone on June 4, 2018.

In reaching this finding, I credit [REDACTED]'s statements as consistent and logical. In those statements, Ariel explained that Respondent took the phone with him when he left the premises after the altercation. I find that her explanation comports with common sense. In addition, since the self-serving aspect of Respondent's removal of what would have been material evidence of his misconduct is manifest, it may also be considered evidence of consciousness of guilt. For similar reasons, I do not credit Respondent's denial that he damaged the phone, as his interest in avoiding the consequences of his actions looms large in this context.

For the foregoing reasons, I find Respondent Guilty of Specification 3.

PENALTY

In order to determine appropriate penalties, the Tribunal, guided by the Department Disciplinary System Penalty Guidelines ("Disciplinary Guidelines"), considered all relevant facts and circumstances, including any aggravating and mitigating factors established in the record. Respondent's employment history was also examined (*See* 38 RCNY § 15-07). Information from Respondent's personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 1, 2004, has been found guilty of three physical acts of domestic violence. The presumptive penalty for a single physical act of domestic violence is dismissal probation, 30 suspension days, and a 24-week counseling

program. The aggravated penalty for the same act is termination. The Department Advocate has recommended that Respondent be terminated: I agree.

I find the presence of the following aggravating factors, along with their penalties:

(1) Alcohol a factor in the incident, ten penalty days

Ariel made a credible assertion that Respondent was chronically drunk and regularly consumed large amounts of alcohol during his off-duty hours. She specifically alleged that during the August 16, 2015, May 15, 2018, and June 4, 2018 incidents, Respondent had been drinking.

(2) Leaving the scene, five penalty days

The relevant, credible evidence established that Respondent was not present on August 16, 2015, and June 4, 2018, when the police responded to the marital home at Ariel's request.

(3) Physical injury, ten suspension days-termination

The relevant, credible evidence established that Respondent caused physical injury to Ariel's eye, neck and legs during the August 16, 2015 incident.

(4) Preventing a victim from leaving premises, ten penalty days

The relevant, credible evidence established that during the August 16, 2015 incident, Respondent dragged Ariel back inside their apartment as she attempted to leave and then later tried to place her in a closet.

(5) Vulnerable victim, 15 penalty days

At the time of their marriage in July 2015, Respondent was aware that Ariel had suffered the loss of her 19-year old son in a fatal car accident three years earlier. He was also aware that she took prescription anti-anxiety medication. In his testimony, he admitted that Ariel suffered from moodiness and behavioral changes as significant dates approached. Thus, Respondent was on notice that Ariel was an individual who was in a particularly vulnerable state.

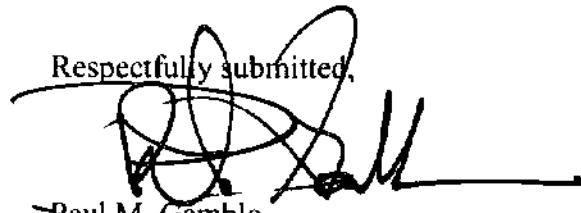
While not explicitly delineated in the Guidelines as an aggravating factor, I find the language Respondent used to be an additional aggravating factor during these violent incidents. His words were vile, deliberately cruel, and undoubtedly calculated to cause emotional distress. For example, during the August 16, 2015 incident, he criticized [REDACTED]'s purchases by saying, among other things: (1) "You do things like a lowlife. You do things like a n---r"; (2) "You're just useless; you can't even make kids" (Dept. Ex. 1 at 4, ln. 12-13; 21-22). During the May 15, 2018 incident, he said, "Get the f---k out and go enjoy your dead son" (Dept. Ex. 13 at 4, ln. 10). Finally, during the June 4, 2018 incident, he spat in [REDACTED]'s face and called her "an effin' C" (*Id.* at p. 23, ln. 1-2).

I am aware that Respondent spent a significant number of years in active and reserve service to the United States through his affiliation with the United States Air Force and the New York Air National Guard. This service included overseas deployments to Kuwait, Djibouti, and Qatar. While I would ordinarily be disposed to consider this exceptional service to the nation to have some mitigating effect, any such mitigation is substantially outweighed by the aggravating factors present in this case.

The pattern of misconduct Respondent exhibited in a four-year marriage was shocking; it manifests a callousness to human suffering, which is intolerable in any human being, let alone a New York City Police Officer. Respondent's continued presence as a Member of Service would be corrosive to the good order and discipline of the force.

Based upon the foregoing, I recommend that, pursuant to Section 14-115 of the Administrative Code of the City of New York, Respondent be DISMISSED from the Department.

Respectfully submitted,

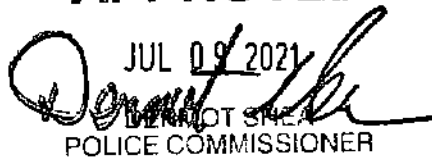
A handwritten signature in black ink, appearing to read 'Paul M. Gamble', with a long horizontal line extending to the right.

Paul M. Gamble

Assistant Deputy Commissioner Trials

APPROVED

JUL 09 2021

A handwritten signature in black ink, appearing to read 'Dennis J. Shea', with a long horizontal line extending to the right.

DENNIS J. SHEA
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER KENNETH HANSEN
TAX REGISTRY NO. 934883
DISCIPLINARY CASE NOS. 2016-16254 & 2018-19141

Respondent was appointed to the Department on July 1, 2004. On his last three annual performance evaluations, he received a 3.5 overall rating of “Highly Competent/Competent” for 2014, and twice received 3.0 overall ratings of “Competent” for 2012 and 2013.

Respondent has no disciplinary record. In connection with the instant matters, Respondent was suspended from June 12, 2018, through July 11, 2018. He was also placed on Level I Discipline Monitoring on January 17, 2017; that monitoring remains ongoing.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials